

PRIVACY POLICY

SecureCorp Inc. - Enterprise Data Analytics Platform
Last Updated: May 30, 2026

1. Introduction & Legal Basis

SecureCorp Inc. ('we,' 'us,' 'our,' or 'Company') processes personal data in accordance with the General Data Protection Regulation (GDPR), the California Consumer Privacy Act (CCPA), and applicable data protection laws. This Privacy Policy explains how we collect, use, disclose, and protect your personal data. **Our lawful basis for processing includes: (1) performance of contract with you, (2) your explicit consent, (3) compliance with legal obligations, and (4) our legitimate interests in operating a secure platform.** For EU residents, you have rights under Articles 12-22 of GDPR.

2. What Data We Collect & Lawful Basis

We collect the following information under these specific lawful bases:

Data Type	Lawful Basis	Retention Period
Email, name, phone	Contract (account creation)	3 years after account closure
IP address, browser info	Legitimate interest (security & fraud prevention)	6 months
Payment information	Contract (transaction processing)	7 years (legal requirement)
Location data (optional)	Explicit consent (opt-in)	1 year or until consent withdrawn
User behavior analytics	Legitimate interest (service improvement)	1 year (anonymized after 90 days)
Files uploaded	Contract (storage service)	Duration of contract + 30 days

3. Data Retention Periods (GDPR Art. 5(1)(e))

We retain personal data only as long as necessary:

- **Customer account data:** 3 years after account closure
 - **Transaction/payment records:** 7 years (tax/legal requirement)
 - **Analytics data (identifiable):** 1 year, then anonymized
 - **Server logs:** 6 months for security purposes
 - **Deleted files:** Permanently deleted within 30 days of request
 - **Consent records:** Maintained for 3 years to prove compliance
- After retention period expires, data is either deleted or permanently anonymized. You may request deletion at any time (subject to legal exceptions).

4. Third-Party Data Processing & Agreements

All third parties have signed Data Processing Agreements (DPA) under GDPR Article 28.
Our processors include:

Processor	Data Processed	DPA Signed	Transfer Mechanism
Amazon Web Services (AWS)	All data (encrypted storage)	Yes - 12/2023	Standard Contractual Clauses (SCC)

Stripe (Payment)	Payment cards (tokenized)	Yes - 11/2023	SCC
SendGrid (Email)	Email addresses only	Yes - 10/2023	SCC
Google Analytics	Anonymous sessions only	Yes - 08/2023	Data Processing Amendment

Sub-processors: AWS uses sub-processors for backup (see list at aws.amazon.com/subprocessors). Customers are notified 30 days before any new sub-processor is added.

5. Your Data Subject Rights (GDPR Articles 12-22 & CCPA §1798.100+)

You have the following rights (all requests answered within 30 days):

Right to Access (Art. 15): Request a copy of your data in a machine-readable format. Submit to: dpo@securecorp.com. Response time: 30 days.

Right to Rectification (Art. 16): Correct inaccurate data. Submit changes at account settings or email DPO. Processed in 15 days.

Right to Erasure/Deletion (Art. 17 & CCPA §1202): Request deletion of your data (exceptions: legal obligation, service continuity). Processed in 30 days. Data is purged from backups within 90 days.

Right to Restrict Processing (Art. 18): Limit use of your data while disputes are resolved. Email dpo@securecorp.com to activate.

Right to Data Portability (Art. 20): Receive data in CSV/JSON format. Available through account dashboard or via DPO.

Right to Object (Art. 21): Opt out of marketing or legitimate interest processing. One-click unsubscribe in emails or manage preferences at account settings.

How to submit requests: Email dpo@securecorp.com with 'Data Subject Request' in subject line. Include name, email, and specific request type. We may request ID verification for security. No fees for first 3 requests per year.

6. Data Breach Notification (GDPR Art. 33-34)

In the event of a data breach:

1. **Supervisory Authority (72 hours):** We notify the relevant supervisory authority within 72 hours (unless the breach poses no risk to individuals). For EU residents, this is your national data protection authority.
2. **Affected Individuals (without undue delay):** You will be notified via email with details of: the breach, what data was affected, potential consequences, and steps we took to mitigate harm.
3. **Incident Response:** We maintain an incident log and conduct post-incident reviews. Forensic reports are available to enterprise customers upon request.
4. **Authorities:** Law enforcement will be notified if required. Contact: Chief Information Security Officer (ciso@securecorp.com, available 24/7).

7. Cookies & Tracking (ePrivacy Directive & CCPA)

Cookie Policy: On first visit, we show a cookie consent banner. Users can:

- **Accept All:** Enable essential, analytics, and marketing cookies
- **Reject All:** Only essential cookies (session management) are enabled
- **Customize:** Choose which cookie categories to allow

Cookie Types:

- **Essential (always on):** Session cookies, CSRF protection (required for service)
- **Analytics (opt-in):** Google Analytics, Hotjar (understand user behavior)
- **Marketing (opt-in):** Pixel tracking for retargeting ads (only if you click 'Accept All')

Opt-out methods: Manage preferences at any time at account settings > Privacy Preferences. Do Not Track (DNT) headers are respected. Opt out of Google Analytics at myaccount.google.com/data-and-privacy.

8. International Data Transfers (GDPR Art. 46)

We transfer data globally under these safeguards:

- **EU → USA:** Standard Contractual Clauses (SCCs) per GDPR Art. 46(2)(c). Transfers compliant with Schrems II decision (risk assessment available).
 - **EU → Other countries:** SCCs or EU adequacy decisions (where applicable).
 - **Encryption:** All data in transit uses TLS 1.2+. Data at rest encrypted with AES-256.
 - **Sub-processor approval:** New transfers require 30-day notice to customers.
- You can request our transfer risk assessment: dpo@securecorp.com

9. California Consumer Privacy Act (CCPA)

California residents have these rights:

- **Right to Know (§1798.100):** What personal information is collected, used, and shared
- **Right to Delete (§1798.105):** Delete your data (with some exceptions)
- **Right to Opt-Out of Sales (§1798.120):** We DO NOT sell personal information. We do not and will not sell your data to third parties for monetary consideration.
- **Right to Non-Discrimination (§1798.125):** We don't discriminate against you for exercising these rights

Submit CCPA requests: privacy@securecorp.com. Response time: 45 days. We verify your identity using two-factor authentication.

10. Data Security Measures

Security Controls (ISO 27001 certified):

- End-to-end encryption for sensitive data
- Multi-factor authentication (MFA) for all accounts
- Regular penetration testing & vulnerability assessments
- Data access logs & audit trails
- Incident response plan & 24/7 monitoring
- Employee training on data handling (annual)
- Third-party security assessments of vendors

11. Children's Privacy & Special Data

Children (under 13): Our service is not directed at children. We do not knowingly collect data from anyone under 13. If we discover a child's data, we delete it within 5 days. Parents concerned about a child's account should contact: safeguarding@securecorp.com

Special Categories (GDPR Art. 9): We do not intentionally collect sensitive data (race, health, politics). If users voluntarily upload such data, we encrypt it separately and limit access to authorized personnel only.

12. Data Protection Officer & Contacts

Data Protection Officer (DPO):

Name: Sarah Chen

Email: dpo@securecorp.com

Phone: +1 (415) 555-0100

Available: Monday-Friday, 9 AM - 5 PM PST

Supervisory Authority (EU): If you believe we violate GDPR, file a complaint with your national authority:

Germany (GDPR equivalent): de-dpa@bfdi.bund.de

France: cnil.fr

UK: ico.org.uk

Privacy Questions:

Email: privacy@securecorp.com

Mailing: SecureCorp Inc., 456 Compliance Way, San Francisco, CA 94105

Online form: securecorp.com/privacy-request

13. Changes to This Privacy Policy

We notify users of material changes 30 days in advance. Changes are announced via email, in-app notification, and posted on this page. Your continued use after the change period means acceptance. For significant privacy reductions, we require explicit re-consent.

COMPLIANCE CHECKLIST:

- ✓ GDPR lawful basis specified for all processing
- ✓ Specific data retention periods (not indefinite)
- ✓ 72-hour breach notification process documented

- ✓ Data Processing Agreements signed with all processors
- ✓ Sub-processor list maintained & updated
- ✓ Standard Contractual Clauses (SCCs) for international transfers
- ✓ Cookie consent mechanism with granular opt-in/out
- ✓ No location tracking without consent
- ✓ All data subject rights (Art. 12-22) procedures documented
- ✓ Data Protection Officer designated & accessible
- ✓ CCPA rights explained (CA residents)
- ✓ Age verification not required (clearly stated)
- ✓ Third-party marketing requires separate consent
- ✓ Policy update notification process in place